

STATE OF MICHIGAN
IN THE THIRD JUDICIAL CIRCUIT FOR THE COUNTY OF WAYNE
FAMILY DIVISION, DOMESTIC RELATIONS

ADRIENNE MARJORIE ROCKENHAUS,
Plaintiff/Counter-Defendant,

v.

CONRAD ALAN ROCKENHAUS,
Defendant/Counter-Plaintiff.

Case No. **26-104594-DO**

Hon. **Nicole N. Goodson**

**DEFENDANT/COUNTER-PLAINTIFF'S MOTION FOR LEAVE TO FILE
FIRST AMENDED COUNTERCLAIM**

NOW COMES Defendant/Counter-Plaintiff Conrad Alan Rockenhaus, appearing pro se, and respectfully moves this Honorable Court for leave to file his First Amended Counterclaim pursuant to MCR 2.118(A)(2). In support of this motion, Counter-Plaintiff states as follows:

I. PROCEDURAL POSTURE

1. Counter-Plaintiff filed his Answer to Verified Complaint for Divorce, Affirmative Defenses, and Counterclaim on April 15, 2026.
2. Counter-Defendant, through her counsel of record Aldrich Legal Services, PLLC, was served with the Counterclaim on April 15, 2026.
3. Counter-Defendant failed to file a timely Answer to the Counterclaim. The Clerk of this Court entered Default against Counter-Defendant on the Counterclaim on May 12, 2026 (MC07 entered same day).
4. Counter-Plaintiff filed his Motion for Default Judgment on Counterclaim pursuant to MCR 2.603(B)(3) on May 12, 2026. The Motion is pending hearing date assignment by chambers.
5. The 14-day window for amendment as of right under MCR 2.118(A)(1) has closed. Amendment is therefore sought by leave of Court under MCR 2.118(A)(2).

II. LEGAL STANDARD

6. MCR 2.118(A)(2) provides that, beyond the as-of-right window, "a party may amend a pleading only by leave of the court or by written consent of the adverse party. Leave shall be freely given when justice so requires."
7. Michigan appellate authority consistently interprets the "freely given when justice so requires" standard liberally. Reasons that justify denial of leave are limited and include undue delay, bad faith, dilatory motive on the part of the movant, repeated failure to cure deficiencies by amendments previously allowed, undue prejudice to the opposing party, and futility. *Weymers v Khera*, 454 Mich 639, 658-659; 563 NW2d 647 (1997); *Ben P Fyke & Sons, Inc v Gunter Co*, 390 Mich 649, 656; 213 NW2d 134 (1973).
8. The mere fact that default has been entered does not preclude amendment. Default establishes liability on the originally pleaded facts but does not lock the pleading against

further evidentiary development of the same claims. *Wood v Detroit Auto Inter-Ins Exch*, 413 Mich 573, 583; 321 NW2d 653 (1982) (default operates as admission of well-pleaded facts but not as a bar to procedural development).

9. MCR 2.118(D) further provides that an amendment "relates back to the date of the original pleading" where the amended claim "arose out of the conduct, transaction, or occurrence set forth, or attempted to be set forth, in the original pleading." The relation-back doctrine applies here.

III. REASONS SUPPORTING AMENDMENT

10. Counter-Plaintiff's original Counterclaim, at §VI (¶¶34-43), described Counter-Defendant's coordinated harassment of Counter-Plaintiff through online channels operating as Counter-Defendant's identity-amplification network. The original Counterclaim identified Counter-Defendant's verified main account @adezero and made allegations regarding her operation of sockpuppet accounts on the X/Twitter platform.
11. Since the April 15, 2026 filing date, Counter-Plaintiff has developed substantial new documentary evidence of the coordinated harassment operation that was alleged in general terms in the original pleading. The new evidence does not assert new claims; it provides the documentary substrate for the same claims that have already been deemed admitted by default. Specifically, Counter-Plaintiff has developed:
 - a. A cryptographically preserved scrape evidence corpus comprising eighteen Apify JSON files (the "May 12, 2026 Scrape Evidence") totaling approximately 114 megabytes and capturing approximately fourteen thousand five hundred tweet records across all eleven sockpuppet accounts plus @rosebuttcheeks, @JustCallMeJoeP, and the dead-man's-switch broadcast conversation tree, all preserved with SHA-256 hash manifest under sworn chain of custody;
 - b. Documentary identification of Joe Prich (@JustCallMeJoeP, located Austin, Texas, X Blue verified subscriber, user ID 1937294142633123840, account created June 23, 2025) as Counter-Defendant's documented romantic partner and the self-attributed source of her publicly announced intent to abandon the surname "Rockenhaus";
 - c. Documented coordinated cessation of posting across all eleven sockpuppet accounts in three waves between March 17, 2026 and April 5, 2026, consistent with consciousness of guilt and preparation for evidence suppression;
 - d. Documented cross-account coordination patterns independent of @adezero, including a March 28, 2026 retweet sequence by @phatadvert demonstrating shared-operator architecture; and
 - e. Documentation of Counter-Defendant's continuing wrongful conduct after the April 15, 2026 filing of the Counterclaim, including the May 4, 2026 "Dead Man's Switch" Facebook post under Counter-Plaintiff's compromised account naming five individuals (including Counter-Plaintiff's witnesses) as "responsible for my death," subsequent Demi-Jo Matthews Facebook sockpuppet activity, AirTag cyberstalking findings, and the May 9, 2026 vacation of Counter-Defendant's Ross Drive residence with no forwarding address as confirmed by the landlord.
12. The amendment is timely. The Apify scrape evidence corpus was completed within the last 30 days. The May 4, 2026 Dead Man's Switch post, May 5-7, 2026 Demi-Jo Matthews activity, and May 9, 2026 residence vacation all postdate the April 15, 2026 Counterclaim filing. The Joe Prich identification was completed within the past week. Counter-Plaintiff has moved promptly to bring these matters before the Court.

13. The amendment seeks to add specific equitable relief and to clarify legal theories supported by the factual basis but not expressly pleaded or itemized in the original Counterclaim. The amendment includes: (a) explicit pleading of common-law conversion and statutory conversion under MCL 600.2919a on the financial-misconduct and personal-property facts already pleaded in original Counterclaim Sections III, IV, and IX, with corresponding addition of a statutory treble-damages claim under the same statute; and (b) additional equitable relief items addressing the matters in paragraph 11 above. Most critically, MCR 2.603(B)(3)(c) provides that a default judgment "may not be different in kind from, or exceed in amount, that prayed for in the demand for judgment." If Counter-Plaintiff is to obtain the statutory treble damages available on the conversion facts, or equitable relief addressing the documented misuse of his surname as the operational identity for the coordinated harassment campaign, that relief must be expressly itemized in the prayer. Amendment is therefore not merely advisable but procedurally necessary to enable the Court to grant the full measure of relief that the established factual basis supports.
14. The proposed First Amended Counterclaim, attached as Exhibit A, preserves paragraphs 24 through 62 of the original Counterclaim substantially verbatim, with the exception of paragraph 49, in which the original phrasing "backpack with clothing" is refined to "numerous articles of clothing" as a more accurate description of the wrongfully retained personal effects. The amendment adds a new Section XIII (§§63-91) setting forth the post-filing evidentiary development described in paragraph 11 above, and a new Section XIV (§§92-100) explicitly pleading common-law conversion and statutory conversion under MCL 600.2919a on the financial-misconduct and personal-property facts already pleaded in original Sections III, IV, and IX. The Relief section is renumbered as Section XV and preserves substantive items A through J of the original prayer (with items C and D refined to invoke the conversion theory and item C further refined to reserve the SSDI overpayment for the proper federal forum; with the original item K, transfer or consolidation to Washtenaw County, omitted in light of Counter-Plaintiff's election to litigate this matter to conclusion in this forum), inserts new substantive items K through R addressing the matters described in paragraph 13 above, and retains the original catch-all item now relabeled as item S. The proposed amendment as filed today incorporates two clarifying refinements relative to the version transmitted to Counter-Defendant's counsel with Counter-Plaintiff's Request for Concurrence on May 13, 2026: first, paragraphs 94 through 96 (formerly paragraphs 93 through 95) expressly reference the pendency of Counter-Plaintiff's Motion to Determine Sufficiency of Plaintiff's RFA Answers (filed concurrently herewith) as a procedural predicate for the deemed-admission references therein; and second, a single additional paragraph (new paragraph 91) at the close of Section XIII documents the post-filing continuation of the pleaded course of conduct, with cross-reference to Counter-Plaintiff's Substantive Supplement to Emergency Motion for Preservation Order, filed May 15, 2026. Neither refinement adds new claims, new theories of liability, or new categories of relief beyond those identified in the version transmitted to Counter-Defendant's counsel on May 13, 2026.

IV. NO PREJUDICE TO COUNTER-DEFENDANT

15. Counter-Defendant cannot credibly claim prejudice from this amendment. She is in default, having failed to defend the original Counterclaim despite proper service. She has also vacated her Ross Drive residence with no forwarding address, and has elected to absent herself from these proceedings entirely. Her counsel of record has a Motion to Withdraw pending before this Court.

16. The amendments substantially relate back to the original Counterclaim under MCR 2.118(D). The new factual material in proposed Section XIII refines and documents the factual basis of harassment-related claims already pleaded in the original Counterclaim. The new legal characterization in proposed Section XIV arises out of the same conduct, transaction, and occurrence pleaded in original Counterclaim Sections III, IV, and IX, and asserts common-law and statutory conversion theories on those facts. Both bases for amendment fall squarely within the relation-back doctrine; no new conduct, transaction, or occurrence is alleged.
17. To the extent any procedural protection is required, Counter-Defendant retains the right under MCR 2.108(A)(2) to answer the amended portions within 14 days of service of the amended pleading. If she chooses to answer, the case proceeds. If she chooses not to answer, the amended portions are also deemed admitted by default, and Counter-Plaintiff's Motion for Default Judgment will be supplemented accordingly. Either outcome respects her procedural rights.
18. Service of the Motion for Leave and the proposed Amended Counterclaim will be effected on Counter-Defendant through her counsel of record, Aldrich Legal Services, PLLC, while Aldrich remains counsel of record pending the Court's ruling on Aldrich's renewed Motion to Withdraw. Service is therefore clean and reliable under MCR 2.107(B)(1).

V. LCR 2.119(B) COMPLIANCE

19. **Concurrence sought and deemed denied (LCR 2.119(B)(1)).** On May 13, 2026 at approximately 7:14 AM EDT (11:14 UTC), Counter-Plaintiff sent an electronic communication to Lisa Baker (P82555), Counter-Defendant's counsel of record, with copy to paralegal Kristen K. Sinkiewicz, seeking concurrence in the relief requested in this Motion and attaching the proposed First Amended Counterclaim as Exhibit A. The communication requested a response by Friday, May 15, 2026 at 12:00 PM EDT and stated that absent a response by that time, concurrence would be deemed denied for purposes of LCR 2.119(B)(1). The deadline expired without response from Counter-Defendant's counsel. Concurrence is therefore deemed denied, and this Motion is filed as a contested motion.
20. **No prior similar motion (LCR 2.119(B)(2)).** This is the first motion for leave to amend the Counterclaim filed in this matter.

VI. RELIEF REQUESTED

WHEREFORE, Defendant/Counter-Plaintiff Conrad Alan Rockenhaus respectfully requests that this Honorable Court:

- A. Grant Counter-Plaintiff leave under MCR 2.118(A)(2) to file the First Amended Counterclaim attached hereto as Exhibit A;
 - B. Direct that the First Amended Counterclaim shall be deemed filed and served upon entry of an Order granting this Motion;
 - C. Provide that Counter-Defendant's response, if any, to the amended portions shall be filed within 14 days of service pursuant to MCR 2.108(A)(2), failing which the amended portions shall be deemed admitted by default consistent with the operative Default entered May 12, 2026; and
 - D. Grant such other and further relief as this Court deems just and equitable.
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Respectfully submitted,
/s/ Conrad A. Rockenhaus
Conrad Alan Rockenhaus, Defendant/Counter-Plaintiff Pro Se
1690 Brookfield Drive
Ann Arbor, Michigan 48103
(254) 340-7910
conrad@rockenhaus.net
Date: May 18, 2026

CERTIFICATE OF SERVICE

I, Conrad Alan Rockenhaus, hereby certify that on May 18, 2026, I served a true and correct copy of the foregoing Motion for Leave to File First Amended Counterclaim, together with the proposed First Amended Counterclaim attached as Exhibit A, upon the following:

Plaintiff/Counter-Defendant Adrienne Marjorie Rockenhaus, through her counsel of record:

Lisa Baker, Esq. (P82555)
Aldrich Legal Services, PLLC
276 South Union Street
Plymouth, Michigan 48170

Via electronic mail per MCR 2.107(G) to lisabaker@aldrichlegalservices.com, with copy to kris@aldrichlegalservices.com; courtesy first-class United States Mail to follow under separate cover.

/s/ Conrad A. Rockenhaus
Conrad Alan Rockenhaus
Defendant/Counter-Plaintiff Pro Se
Date: May 18, 2026